

STATE OF NEW YORK

1692--A

Cal. No. 379

2025-2026 Regular Sessions

IN SENATE

January 13, 2025

Introduced by Sens. RAMOS, BAILEY, MYRIE, SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the correction law, in relation to commissaries or canteens in correctional institutions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 26 of the correction law, as amended by chapter 322
2 of the laws of 2021, is amended to read as follows:

3 § 26. [~~Establishment of commissaries~~] Commissaries or canteens in
4 correctional institutions. 1. The commissioner may authorize the head of
5 any institution in the department to establish a commissary or a canteen
6 in such institution for the use and benefit of incarcerated individuals.
7 Items sold at the commissary or canteen shall be sold at no more than
8 three percent over the purchase price for such items. The department
9 shall maximize discounts procured by bulk purchasing commissary items or
10 through other contracting opportunities that reduce the cost of such
11 items, and shall not receive commissions, revenue, or other financial
12 incentives in any contract with a seller, supplier, or vendor of commis-
13 sary items. The moneys received by the head of the institution as
14 profits from the sales of the commissary or canteen shall be deposited
15 in a special fund to be known as the commissary or canteen fund and such
16 funds shall be used for the general purposes of the institution subject
17 to the provisions of section fifty-three of the state finance law.

18 2. The department shall publish on its website the price lists for all
19 commissary items for sale at each institution as of June first, two
20 thousand twenty-five and on an annual basis thereafter.

21 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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